

Judgment Sheet

IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH BAHAWALPUR.
JUDICIAL DEPARTMENT

W.P.No.4633 of 2025/BWP

Muhammad Mehboob
Vs.
The Government of Punjab, etc.

J U D G M E N T

Date of hearing	18.06.2026
Petitioner By:	Mr. Mukhtar Ahmad Malik, Advocate
Respondents By:	Mr. Jamshaid Iqbal Khakwani, A.A.G.

Faisal Zaman Khan, J:- Through this petition order dated 11.04.2025 passed by respondent No.4 has been assailed, whereby appointment of the petitioner made under Rule 17-A of the Punjab Civil Servants (Appointment and Conditions of Service) Rules, 1974 (**Rules**) has been cancelled/withdrawn.

2. Succinctly, the facts of the case are that father of the petitioner namely Abdul Sattar was working as Revenue Patwari (BS-9) who through order dated 23.12.2023 was declared permanently incapacitated thus was retired on medical grounds. Seeking benefit of Rule 17-A of the Rules petitioner applied for the post of Patwari/Revenue Field Staff (BS-9) whereupon, through order dated 17.03.2025 issued by respondent No.4, he was appointed, subsequent to which, through the impugned order his appointment was cancelled/withdrawn, hence, this petition.

3. Learned counsel for the petitioner submits that without affording an opportunity of hearing to the petitioner the impugned order has been passed, therefore, the same is not sustainable. Further adds that appointment of the petitioner has been cancelled/withdrawn in view of the directions/guidelines issued by the Regulation Wing, Service and General Administration Department, Government of the Punjab through letter dated 10.02.2025 by virtue of which this has been highlighted that

since Rule 17-A of the Rules has been omitted/repealed, therefore, no appointment can be made after the omission/repeal of the said provision, however, respondents lost sight of the fact that prior to repeal/omission of Rule 17-A of the Rules valuable right had accrued in favour of the petitioner on the retirement of his father, who was a civil servant so as to be considered under the said Rule for appointment, thus, the impugned order cannot sustain.

4. Replying to the above, learned Law Officer submits that since Rule 17-A of the Rules was omitted/repealed by the Government of the Punjab on 26.07.2024 and as the petitioner was appointed on 17.03.2025 i.e. after the omission/repeal of the said provision therefore, the appointment made under the said provision could not sustain, hence, the impugned order has rightly been passed.

5. Arguments heard. Record perused.

6. Previously, in order to facilitate the families of the deceased employees, who died during service or the one who retired on medical grounds, the Federal and the Provincial Governments had fixed/reserved quotas for appointment of their widow/widower/children and in this regard beneficial legislation like Rule 17-A of the Rules, Rule 11-A in the Sindh Civil Servants (Appointment, Promotion and Transfer) Rules, 1974, Rule 10(4) Khyber Pakhtunkhwa Civil Servants (Appointment, Promotion and Transfer) Rules, 1989 and Rule 12 Baluchistan Civil Servants (Appointment, Promotion and Transfer) Rules, 2009, respectively were made (**Beneficial Rules**). Apart from the above provisions, the Federal and Provincial Governments also introduced/announced Assistance Packages for such employees. The distinct feature of these Beneficial Rules/Assistance Packages was that under them the appointments are to be made bypassing the regular recruitment process like advertisement and open competition, however, it was subject to availability of the post and eligibility of candidate at the time when his predecessor expired or retired on medical grounds.

7. The above Beneficial Rules/Assistance Packages including Rule 17-A of the Rules came under scrutiny before the Supreme Court of Pakistan in the case reported as General Post Office, Islamabad and

others v. Muhammad Jalal (PLD 2024 SC 1276) and all such Rules and Assistance Packages under which appointments were made without any advertisement and competitive process were declared *ultra vires* to the Constitution of the Islamic Republic of Pakistan (**Constitution**), however, an exception was created by clarifying that the appointments already made under such Rules and Packages will not be affected from the operation of the judgment and shall remain intact.

8. It shall be apposite to mention here that the representative of the Government of the Punjab while appearing before the Apex Court in the case of Muhammad Jalal supra had deposed that the Provincial Government has discontinued to make appointments under Rule 17-A of the Rules since 21.11.2023 and through Notification dated 26.07.2024 the said Rule stands omitted/repealed, therefore, no finding qua said Rule was given in the judgment, however, on the analogy that as the other Beneficial Rules/Assistance Packages have been declared *ultra vires* to the constitution, the same effect has to be given to this Rule as well.

9. In the wake of the judgment of Muhammad Jalal supra, jurisdiction of different High Courts was invoked by the aggrieved persons on the ground that whether the effect of the judgment is prospective or retrospective in nature with special reference to the fact that does the said judgment take away the right of a person whose predecessor expired or retired prior to the announcement of the said judgment or the repeal/omission of a provision (Rule 17-A), for being considered for appointment as to this effect the judgment was silent, whereupon, divergent views were taken by the High Courts while interpreting the said judgment. Against the divergent views taken by different Single Benches of this Court (including myself), the matter came up before a Division Bench of this Court in the case reported as Province of Punjab through Secretary, Primary and Secondary Healthcare Department, Lahore and 2 others v. Syed Muhammad Ali Raza Shah {2025 PLC (CS) 931} and the said Bench while reconciling the views taken by different Benches held that the appointments, which have been made prior to omission/repeal of Rule 17-A of the Rules and the Beneficial Rules/Assistance Packages, will be protected, however,

no further appointments can be made despite the fact that a right had accrued to a person for consideration under Rule 17-A of the Rules prior to such omission/repeal, keeping in view the Judgment of Muhammad Jalal supra.

10. Thereafter, the matter again came before the Supreme Court of Pakistan in the case reported as Ayaz Ali and another v. Federation of Pakistan and others (2026 SCMR 42), in which while elaborating/interpreting the judgment of Muhammad Jalal supra it was held that upon death/retirement of an employee a right accrued to his widow/widower/children for consideration qua appointment under Beneficial Rules/Assistance Packages despite the fact that in the case of Muhammad Jalal supra the Beneficial Rules/Assistance Packages have been declared to be *ultra vires* to the Constitution, hence, it was held that no retrospective effect can be given to the said judgment. This view was reiterated and endorsed by the Supreme Court of Pakistan in Civil Appeals No.106-K to 111-K and 650-K of 2024 titled “**Province of Sindh through Chief Secretary and others v. Azhar Ali and others**”.

11. Thereafter, the matter also came up before the Federal Constitutional Court of Pakistan in F.C.P.L.A. Nos.508, 591, 346, 347, 348, 589, 267, 593, 130 and 353 of 2025 in the case titled “**The Province of Sindh v. Muhammad Rizwan Khan & others**” and it has been held that the effect of the judgment passed in case of Muhammad Jalal supra is prospective in nature, thus, the right accrued to the widow/widower/children of the deceased/retired employees on the death or retirement of their predecessor qua their consideration for appointment under the Beneficial Rules/Assistance Packages remain to be intact, however, the judgment will take effect and extinguish the rights, if any, of the widow/widower/children qua consideration for appointment to whom it had accrued after the date of the judgment or repeal/omission of Rule 17-A of the Rules.

12. The cumulative reading of the afore referred judgments would clearly show that the effect of the judgment of Muhammad Jalal supra is prospective in nature and does not take away the right of a widow/widower/children of the employees, who expired during service

or retired on medical grounds before the date of the judgment or repeal/omission of Rule 17-A of the Rules, to be considered for appointment subject to availability of the post and eligibility of candidate at that point in time when the right accrued and if they fulfill the eligibility criteria, they can be appointed.

13. As discussed in the previous paragraph, the Beneficial Rules/Assistance Packages were introduced to support the families of the civil servants, who died during service or retired prematurely on medical grounds so that they should not suffer due to such untoward happening. The said dispensations is special in nature, whereunder, without any advertisement or competitive process the widows/widowers/children of the expired/retired employees are considered for appointment, however, the same do not automatically create a vested right in favour of the candidate to be considered for appointment, as the candidate has to fulfill the eligibility criteria. Moreover, the right to be considered under the Beneficial Rules/Assistance Packages would be created the day when the civil servant expired or retired on medical grounds and on the very date the candidate should be eligible in all respects for seeking such appointment. The Beneficial Rules/Assistance Packages as it is do not create a heritable right in favour of a candidate, so as to be agitated as and when he became eligible. Reliance can be placed on an unreported judgment of this Court in **W.P.No.13705/2017** titled as “Ameer Hamza v. D&SJ, etc.”.

14. Placing the tenor of the above judgments in juxtaposition with the facts of the present case, it has surfaced that although Rule 17-A of the Rules was omitted/repealed on 26.07.2024, however, the right of the petitioner to be considered under the said Rule accrued when his father was declared medically unfit for future service and stood retired on 23.12.2023, thus, he was rightly appointed under the said Rule (although after the repeal/omission of the Rule) as his right to be considered for appointment under the said Rule accrued in his favour prior to omission/repeal of the said Rule, hence, even if his appointment was made after the repeal/omission of the said Rule his rights will be protected.

15. In the above scenario, since the petitioner has rightly been appointed, therefore, the impugned order could not have been passed, as the same has been passed in oblivion of the subsequent judgments of the Supreme Court of Pakistan as well as the Federal Constitution Court of Pakistan. Even otherwise as no opportunity of hearing was provided to the petitioner prior to issuance of the impugned order, thus, it is also violative of the principle of *Audi Alteram Partem* and Article 10-A of the Constitution.

16. For what has been discussed above, this petition is **allowed**, as a sequel to which the impugned judgment is **set aside**, resultantly, the petitioner is reinstated in service.

(FAISAL ZAMAN KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE